

CONSTITUTION OF IRAN

This Constitution defines a minimum viable government: the subset of constitutional governance that can be encoded, enforced, and audited on a public blockchain. It covers the Crown, Parliament, the Executive, the Supreme Court, Elections, Provincial Councils, Referendums, Public Finance, Succession and Regency, and a Citizen Registry that verifies the identity of voters and officeholders.

PART I — FOUNDATIONAL PROVISIONS

Article I.1 — The State

1. Iran is constituted as a constitutional monarchy, in which sovereignty resides with the people and is exercised through democratic institutions established by this Constitution.
2. The form of the State shall not be altered except in accordance with this Constitution.

Article I.2 — Supremacy of the Constitution

1. This Constitution is the supreme law of the State.
2. Any law, regulation, decision, or act inconsistent with this Constitution is void to the extent of the inconsistency.
3. All organs of the State derive their authority from this Constitution and shall act within its limits.

Article I.3 — Democratic Authority

1. Democratic authority originates with the people.
2. Democratic authority shall be exercised through:
 1. free and regular elections;
 2. representative institutions established by this Constitution;
 3. constitutional procedures designed to ensure effective and continuous government.

Article I.4 — Separation and Allocation of Powers

1. The powers of the State are exercised by:
 1. the Crown;

2. Parliament;
 3. the Executive;
 4. the Supreme Court.
2. Each institution shall exercise only those powers conferred upon it by this Constitution.

Article I.5 — Continuity of the State

1. The State shall endure notwithstanding:
 1. dissolution of Parliament;
 2. resignation, removal, or incapacity of officeholders;
 3. emergencies or extraordinary circumstances.
2. This Constitution shall be interpreted to ensure the continuous operation of lawful authority.

Article I.6 — Constitutional Interpretation

1. This Constitution shall be interpreted so as to:
 1. preserve democratic legitimacy;
 2. maintain the separation of powers;
 3. ensure effective government;
 4. prevent the indefinite suspension or blockage of constitutional functions.
2. Where this Constitution prescribes procedural consequences or automatic outcomes, no organ shall substitute discretionary judgment for those consequences.

Article I.7 — Constitutional Parameters

1. Constitutional parameters (term lengths, quorum requirements, deadlines, thresholds) shall be stored in a central registry.
 2. Parameters may be amended only through the constitutional amendment process defined in Part VII.
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PART II — THE CROWN

Article II.1 — Nature of the Crown

1. The Crown is a constitutional office of continuity and guardianship.
2. The Crown shall not govern, legislate, command the armed forces, or control public finances.
3. The Crown shall exercise only those powers expressly conferred by this Constitution.
4. The Crown shall not substitute its judgment for that of democratic institutions, except as expressly provided herein.

Reza Pahlavi comments: "The best way for a monarch to serve the country is to be the guarantor of the constitutional process and to protect the constitution itself."

Article II.2 — Ministerial Acts of the Crown

1. Where this Constitution requires a formal act of the Crown to acknowledge a legal outcome already determined by constitutional process, such act shall be ministerial.
2. Ministerial acts shall not permit discretion as to timing, content, or result.
3. Failure to perform a ministerial act within the prescribed deadline shall not delay or prevent the legal effect of the outcome acknowledged. The act shall be deemed performed automatically.
4. Ministerial acts include the formal enactment of laws, the declaration of dissolution of the Majlis, and the recognition of constitutional facts certified by the Supreme Court.

Article II.3 — Appointment Powers

1. The Crown shall exercise appointment powers only where expressly authorized by this Constitution.
2. Appointment powers shall not be used to govern, legislate, or direct policy.
3. All appointments shall be subject to the qualifications and procedures prescribed by this Constitution.

Article II.4 — Nomination of the Prime Minister

1. The Crown shall nominate a candidate for Prime Minister in accordance with Part IV.
2. The Crown may make up to two nominations following a vacancy or loss of parliamentary confidence.
3. Each nomination shall be submitted to the Majlis for a vote of confidence.
4. Where the Crown's nominations fail to obtain confidence, subsequent procedures shall proceed as provided in Part IV.

Article II.5 — Legislative Return and Constitutional Referral

1. The Crown may, once with respect to any proposed law adopted by Parliament, return that law to the Majlis for reconsideration.
2. The return of a law shall suspend its enactment pending reconsideration.
3. Upon reconsideration and re-adoption by the Majlis, the Crown may either enact the law or refer it to the Supreme Court for constitutional review.
4. Referral to the Supreme Court shall prioritize constitutional review and shall not constitute a veto.
5. If the Crown neither enacts, returns, nor refers a law within fourteen days of transmission, the law shall be deemed enacted.

Article II.6 — Appointment of Senators

1. The Crown shall appoint Senators as provided in Part III.
2. Crown-appointed Senators shall not constitute more than ten percent of the Senate.
3. Crown-appointed Senators shall meet the same qualifications as other Senators.

Article II.7 — Declaration of Dissolution

1. Where this Constitution requires the dissolution of the Majlis, the Crown shall formally declare such dissolution.
2. The declaration shall be a ministerial act, confirmatory in nature and without independent legal effect.
3. Failure to declare dissolution within seven days shall not delay its legal effect.

Article II.8 — Interpretive Limitation

1. The powers of the Crown shall be interpreted so as to minimize discretion, prevent accumulation of authority, and preserve democratic accountability.
2. No power of the Crown may be expanded by custom, practice, or implication.
3. In cases of doubt, interpretation shall favor democratic institutions.

Reza Pahlavi comments: "The monarch must be above all political factions and be neutral, unbiased and impartial vis-à-vis all ideological, ethnic, religious, or other social and political groups."

PART III — PARLIAMENT

Article III.1 — Structure of Parliament

1. Parliament shall be bicameral, consisting of the Majlis and the Senate.
2. The Majlis shall be the primary democratic chamber.
3. The Senate shall be a chamber of review and continuity.

Article III.2 — The Majlis

1. The Majlis shall be composed of members elected by universal, equal, and direct suffrage in accordance with Part VIII.
2. Elections shall be conducted by proportional representation within each province. Each province shall receive Majlis seats proportional to its population, with a minimum of one seat per province.
3. Members shall serve renewable terms of four years.
4. The total number of Majlis seats and the allocation of seats among provinces may be adjusted by Parliament through legislation, subject to Crown review and Supreme Court constitutional review, to reflect changes in population.

Article III.3 — Powers of the Majlis

1. The Majlis shall grant and withdraw confidence in the Prime Minister and Cabinet.
2. The Majlis shall originate legislation and the annual budget.
3. No executive authority shall be exercised except with the confidence of the Majlis.

Article III.4 — The Senate

1. Senators shall be selected by election from Provincial Councils and by appointment by the Crown.
2. Senators appointed by the Crown shall constitute no more than ten percent of the Senate.
3. Senators shall serve non-renewable terms of six years, renewed by thirds every two years.
4. The Senate shall remain constituted during dissolution of the Majlis.

Article III.5 — Powers of the Senate

1. The Senate shall review legislation and budgets adopted by the Majlis.
2. The Senate shall confirm or reject judicial appointments as provided in Part V.
3. The Senate shall participate in constitutional amendment procedures.
4. The Senate shall not originate legislation or budgets.

Article III.6 — Legislative Process

1. A member of the Majlis may introduce a bill by submitting its text and description to Parliament.
2. The Majlis shall vote on the bill. Adoption requires a majority of members present, provided a quorum exists.
3. An adopted bill shall be transmitted to the Senate for review.
4. The Senate may, within thirty days:
 1. approve the bill, which transmits it to the Crown;
 2. propose amendments, which returns it to the Majlis;
 3. object to the bill, which returns it to the Majlis.
5. Where the Senate objects, the Majlis may re-adopt the bill by an absolute majority of all members, overriding the Senate objection.
6. Where the Senate fails to act within thirty days, the bill is deemed approved and transmitted to the Crown.
7. Upon transmission to the Crown, the bill enters the Crown action phase (Article II.5).

Article III.7 — Budgetary Continuity

1. Where the budget is not enacted by the beginning of the fiscal year, the prior year's budget shall continue on a provisional basis.
2. Budgetary authority shall not lapse due to dissolution of the Majlis.

Article III.8 — Parliamentary Privilege

1. Members of Parliament shall enjoy immunity for votes and statements made in the exercise of their functions.
2. Parliamentary privilege shall not extend to acts outside constitutional authority.

Article III.9 — Vacancy Declaration

1. When a member is dead, permanently disappeared, or has irretrievably lost their cryptographic

key, the relevant chamber may declare the seat vacant by simple majority vote.

2. The target member shall be excluded from voting and from the denominator.
3. The Supreme Court may certify a member's incapacity as a fact. Upon Parliament's acknowledgment, the member is immediately excluded from quorum calculations and cannot act, while still formally holding the seat.
4. A vacancy declaration vote shall last fourteen days.
5. Upon passage, the seat is formally vacated and a by-election is triggered per Art. VIII.8.

Article III.10 — Provincial Councils

1. Each of Iran's thirty-one provinces shall have a Provincial Council, elected by universal citizen suffrage within the province.
 2. Provincial Councils shall consist of fifteen members serving four-year terms.
 3. The sole constitutional function of Provincial Councils is the election of Senators. Provincial Councils have no local legislative, budgetary, or regulatory authority under this Constitution.
 4. Senate selection by Provincial Councils shall follow a defined pipeline: candidate registration by any citizen of the province, followed by a vote restricted to active council members.
 5. Provinces shall be grouped into three stagger cohorts (A, B, C) of approximately ten provinces each, controlling Senate renewal by thirds.
 6. The Crown shall initialize provinces by specifying each province's council size, Senate seat allocation, and stagger cohort assignment.
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PART IV — EXECUTIVE AUTHORITY

Article IV.1 — The Executive

1. Executive authority shall be exercised by a Prime Minister and a Cabinet.
2. The Prime Minister shall direct the executive and be responsible for the conduct of government.
3. The executive shall be collectively responsible to the Majlis.

Reza Pahlavi comments: "The head of government is clearly the elected prime minister, not the monarch... The Prime Minister is in charge of policies and decision making."

Article IV.2 — Scope of Executive Authority

1. Executive authority comprises the direction of public administration, implementation of laws, conduct of foreign relations, and management of public services.
2. Executive authority shall be subject to the confidence of the Majlis and to constitutional review by the Supreme Court.

Article IV.3 — Appointment of the Prime Minister

1. The Prime Minister shall be appointed following nomination by the Crown and a vote of confidence by the Majlis.
2. No person shall exercise full executive authority as Prime Minister without obtaining the confidence of the Majlis.

Article IV.4 — Vote of Confidence

1. A candidate for Prime Minister shall present a proposed government program to the Majlis.
2. Confidence shall be granted by an absolute majority of the members of the Majlis.
3. Upon the granting of confidence, the Prime Minister shall exercise full executive authority.

Article IV.5 — Withdrawal of Confidence

1. The Majlis may withdraw confidence from the Prime Minister by vote.
2. Within the first ninety days following a confidence vote, a motion of no confidence requires two-thirds of the members of the Majlis.
3. After ninety days, a simple majority of the members of the Majlis suffices.

Article IV.6 — Caretaker Government

1. Where the office of Prime Minister is vacant, the Cabinet shall continue as a caretaker government.
2. A caretaker government shall not initiate major policy changes, submit new legislation, or appoint judges.
3. Caretaker status is activated automatically upon vacancy and deactivated upon a new PM obtaining confidence.

Article IV.7 — Executive Formation Cycle

1. Upon commencement of an executive formation cycle, the Crown shall nominate a candidate for Prime Minister.
2. The Crown may make no more than two nominations during a single formation cycle.
3. Where both Crown nominations fail to obtain confidence:
 1. The Majlis shall propose a ranked list of three candidates within fourteen days.
 2. The Crown shall appoint from this list within seven days.
 3. Where the Crown fails to appoint within seven days, the first-ranked candidate shall be deemed appointed.
4. Where the Majlis fails to propose a list within fourteen days, the Majlis shall be dissolved and new elections called.

Article IV.8 — Incapacity

1. Where the Prime Minister is unable to discharge duties due to incapacity, the Supreme Court shall certify the vacancy.
2. Upon certification, caretaker provisions shall apply and a new formation cycle shall commence.

Article IV.9 — Executive Succession

1. The Prime Minister shall designate a Deputy Prime Minister within fourteen days of receiving confidence. The designation may not be revoked without simultaneously naming a replacement.
 2. Where the Prime Minister fails to designate a Deputy within the deadline, the Prime Minister may not submit new legislation or make judicial nominations until a Deputy is designated.
 3. Where the Supreme Court certifies the Prime Minister's death or incapacity, the Deputy Prime Minister shall assume the office as Acting Prime Minister with caretaker powers. A formation cycle shall begin for a permanent replacement.
 4. Where both the Prime Minister and Deputy Prime Minister are dead or incapacitated, the Crown shall designate an Acting Prime Minister from among the sitting government.
 5. During Crown suspension, the Senate shall initiate the formation cycle per Art. VI.5.2.
 6. The Acting Prime Minister exercises caretaker powers only: no new legislation, no budget proposals, no judicial appointments.
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PART V — THE SUPREME COURT

Article V.1 — Establishment

1. A Supreme Court is established as the highest judicial authority of the State.
2. The Supreme Court shall:
 1. interpret this Constitution;
 2. review the constitutionality of laws;
 3. resolve disputes between State organs;
 4. certify constitutional facts (vacancies, incapacity, succession).

Article V.2 — Composition

1. The Supreme Court shall consist of twelve Justices serving non-renewable nine-year terms.
2. Terms shall be staggered so that one-third of the Court is renewed every three years.
3. Justices shall be jurists of recognized competence with at least fifteen years of legal experience.

Article V.3 — Appointments

1. The Crown shall nominate candidates for Justice; the Senate shall confirm or reject within thirty days.
2. Failure by the Senate to act within thirty days shall be deemed confirmation.
3. If the Senate rejects, the Crown may nominate one additional, distinct candidate.
4. If the Senate rejects both nominations, the Senate shall propose a ranked list of three candidates within thirty days.
5. The Crown shall appoint from this list within fourteen days, or the first-ranked candidate shall be deemed appointed.
6. If the Senate fails to propose a ranked list, the Crown may appoint one of its previously nominated candidates.

Article V.4 — Jurisdiction

1. The Supreme Court shall have exclusive jurisdiction over the constitutionality of laws, regulations, and executive acts.
2. The Supreme Court shall resolve disputes between constitutional organs (Crown, Parliament, Executive).
3. Decisions of the Supreme Court shall be final and binding on all organs of the State.

Article V.5 — Standing

1. The Crown, Prime Minister, one-tenth of the Majlis, and one-tenth of the Senate may petition the Supreme Court on constitutional matters.
2. Petitions shall state the constitutional question and the relief sought.

Article V.6 — Judicial Independence

1. Justices are independent and subject only to this Constitution and the law.
2. Justices may be removed only for incapacity or serious misconduct, by vote of a majority of the remaining justices.
3. No organ of State shall instruct justices in judicial matters.
4. Judicial compensation shall not be reduced during tenure.

Article V.7 — Continuity

1. The Supreme Court shall remain constituted during dissolution of the Majlis.
2. Vacancies shall be filled without interruption to the functioning of the Court.
3. The Court may act with a quorum of seven justices.

Article V.8 — Court Emergency Recovery

1. Where the Crown, the Prime Minister, or ten per cent of the active members of either chamber of Parliament consider the Court unresponsive, they may initiate a liveness challenge. The Court shall have seven days to demonstrate activity.
 2. Where the Court records no activity for fourteen consecutive days, any person may initiate emergency vacancy proceedings without prior challenge.
 3. If a liveness challenge expires without any justice action, or if the fourteen-day inactivity threshold is met, any person may vacate individual justice seats.
 4. Vacated seats shall be filled through the normal appointment process (Art. V.3).
 5. Any action by an active justice (voting on a review, dispute, or fact certification) resets the liveness challenge and the inactivity timer.
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PART VI — SUCCESSION, REGENCY, AND SUSPENSION OF THE CROWN

Article VI.1 — Hereditary Succession

1. The Crown shall pass by hereditary succession.
2. The successor shall be determined by order of succession as maintained under this Constitution.
3. The succession list shall be updatable by the reigning Monarch with confirmation by the Supreme Court.

Article VI.2 — Eligibility

1. No person shall succeed to the Crown unless that person is a citizen of Iran and has attained age eighteen.
2. Disqualification occurs where the Supreme Court certifies incapacity or formal renunciation.

Article VI.3 — Regency

1. A Regency shall commence where the Monarch is a minor or incapacitated.
2. The Regent shall be the first eligible person in the order of succession who has attained age eighteen.
3. The Regent shall exercise the powers of the Crown temporarily.

Article VI.4 — Abdication and Renunciation

1. The Monarch may abdicate by formal declaration, which the Supreme Court must certify.
2. Any person in the order of succession may renounce their position.
3. Abdication or renunciation takes effect upon certification by the Supreme Court.

Article VI.5 — Temporary Suspension

1. Where no eligible Monarch or Regent exists, the Crown shall be temporarily suspended.
2. During suspension, the Prime Minister shall exercise the Crown's legislative return power, and the Senate shall initiate executive formation.
3. All Crown powers revert upon certification that a Monarch or Regent exists.

Article VI.6 — Exhaustion of the Line

1. Where the Supreme Court certifies that the hereditary line is exhausted, a national referendum on the form of government shall be conducted within one year.
2. Until the referendum produces an outcome, constitutional functions shall continue under

suspension rules.

PART VII — AMENDMENT OF THE CONSTITUTION

Article VII.1 — Amendment Authority

1. This Constitution may be amended only in accordance with this Part.
2. All amendments shall respect the continuity of the State.

Article VII.2 — Initiative

1. Amendments may be initiated by the Majlis, the Senate, or the Prime Minister.
2. Initiative requires a simple majority in the initiating chamber, or a formal proposal by the Prime Minister.

Article VII.3 — Parliamentary Adoption

1. An amendment requires approval by two-thirds of the Majlis and two-thirds of the Senate.

Article VII.4 — Referendum

1. Upon parliamentary adoption, a constitutional amendment shall be submitted to national referendum.
2. An amendment is approved by a simple majority of valid votes cast.

Article VII.5 — Emergency Amendments

1. Where the Supreme Court certifies a grave threat to the constitutional order, Parliament may adopt a temporary amendment by three-quarters of each chamber. A temporary amendment shall be limited to changes of constitutional parameters.
2. A temporary amendment expires after one year unless confirmed by referendum.
3. No temporary amendment may alter protected provisions governing elections, judicial independence, or constitutional supremacy.

4. Protected provisions include: justice terms, court quorum, justice count, amendment thresholds, election parameters (registration period, voting period, dissolution deadline, chamber terms), confidence vote period, emergency amendment duration, and provincial council term.
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PART VIII — ELECTIONS AND REFERENDUMS

Article VIII.1 — Electoral Principles

1. Elections shall be free, fair, and at regular intervals, by universal, equal, and secret suffrage.
2. Members of the Majlis shall be elected by proportional representation within their province for four-year terms.
3. Each citizen registered in the Citizen Registry shall have one vote of equal value.
4. Ballot secrecy shall be preserved through mathematical proofs generated from biometric passport data.

Article VIII.2 — Election Cycles

1. Majlis elections shall be held every four years, or upon dissolution, with one election per province conducted simultaneously across all provinces.
2. Senate elections shall be staggered, with one-third renewed every two years.
3. Provincial Council elections shall be held every four years per province.
4. An election cycle comprises: candidate registration, voting period, tallying, and member seating.
5. The Electoral Commission function is performed by the constitutional election mechanism itself.

Article VIII.3 — Candidate Registration

1. Any citizen may register as a candidate for the Majlis in their province of registration during the registration period.
2. Candidates may associate with a registered political party or stand as independents.
3. The registration period shall be no less than fourteen days.

Article VIII.4 — Voting

1. During the voting period, each registered citizen may cast one ballot in their province's Majlis

election.

2. The ballot shall include the citizen's verified identity proof and their vote.
3. No citizen may vote more than once in the same election.
4. The voting period shall be no less than seven days.

Article VIII.5 — Tallying and Seating

1. Upon the close of voting, votes shall be tallied and seats allocated by proportional representation within each province according to the province's allocated seat count.
2. Elected members shall be seated in Parliament, with their province of election recorded.
3. Tallying shall be transparent and verifiable by any citizen.

Article VIII.6 — Referendums

1. Constitutional referendums shall be conducted in accordance with Part VII.
2. A referendum on the form of government shall be conducted in accordance with Article VI.6.
3. Referendum voting follows the same identity verification and ballot-casting procedures as elections.
4. A referendum is decided by a simple majority of valid votes cast.

Article VIII.7 — Dissolution Elections

1. Where the Majlis is dissolved, new elections shall be called within sixty days, with one election per province conducted simultaneously.
2. Each provincial election shall follow the standard cycle (registration, voting, tallying, seating).
3. The Majlis is restored only when all provincial elections have been seated.
4. Until the new Majlis is seated, the Senate continues to function and the caretaker government remains in place.

Article VIII.8 — By-Elections

1. Where a Majlis seat is vacated before the expiry of its term, a by-election shall be held within ninety days in the province that held the seat.
2. Where a Senate seat is vacated before the expiry of its term, a by-election shall be held within ninety days.
3. A by-election follows the standard election cycle (registration, voting, tallying, seating).
4. The member elected in a by-election serves for the remainder of the original term.

5. Where the remaining term is less than six months, no by-election is required.
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PART IX — PUBLIC FINANCE

Article IX.1 — Budget and Taxation

1. The Prime Minister shall propose the annual budget to the Majlis.
2. No public funds shall be spent except as authorized by an enacted budget.
3. No tax shall be levied except by law adopted through the legislative process.

Article IX.2 — Budget Adoption

1. The budget shall follow the legislative process, with the Majlis having the exclusive right to originate budget legislation.
2. The Senate may review and object to the budget, but the Majlis may override Senate objection by absolute majority.
3. The budget must be enacted before the start of the fiscal year.

Article IX.3 — Budgetary Continuity

1. Where the budget is not enacted by the beginning of the fiscal year, the prior year's budget shall continue on a provisional basis at the same allocation levels.
2. Provisional budgetary authority shall not exceed the prior year's total.
3. Budgetary authority shall not lapse due to dissolution of the Majlis.
4. A provisional continuation budget shall be superseded upon activation of a properly adopted budget for the same fiscal year.

Article IX.4 — National Audit

1. A National Audit Office, independent of the executive, shall audit public accounts and report to Parliament.
2. The head of the Audit Office shall be appointed by the Majlis for a nine-year non-renewable term.
3. The Audit Office shall submit annual audit reports covering all public expenditure.

Article IX.5 – Supplementary Budgets

- 1. Parliament may approve a supplementary budget to increase the spending ceiling of the active budget for the current fiscal year.
 - 2. Supplementary budgets follow the same legislative process as the annual budget.
 - 3. The spending ceiling of the active budget shall be increased by the supplementary amount upon activation.
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